

City of Hollywood

*Hollywood City Hall
2600 Hollywood Blvd
Hollywood, FL 33020
<http://www.hollywoodfl.org>*



Meeting Minutes - Final

Wednesday, February 6, 2019

1:00 PM

Commission Chambers Room 219

Regular City Commission Meeting

CITY COMMISSION

Josh Levy, Mayor

Traci Callari, Vice Mayor - District 3

Caryl Shuham, Commissioner - District 1

Peter Hernandez, Commissioner - District 2

Richard Blattner, Commissioner - District 4

Kevin Biederman, Commissioner - District 5

Linda Sherwood, Commissioner - District 6

Dr. Wazir Ishmael, City Manager

Douglas R. Gonzales, City Attorney

Patricia A. Cerny, City Clerk

The Regular City Commission Meeting of the City of Hollywood, Florida, was called to order by Mayor Levy on Wednesday, February 6, 2019 at 1:10 PM in the City Commission Room, Room 219, Joseph W. Watson Circle, Hollywood, Florida.

1. **Moment of Silence**
2. **Pledge of Allegiance**
3. **Recognition of Veterans, Active Service Personnel & Their Families**
4. **Roll Call**

Present: Commissioner Caryl Shuham, Commissioner Peter Hernandez, Vice Mayor Traci Callari, Commissioner Richard Blattner, Commissioner Kevin D. Biederman, Commissioner Linda Sherwood and Mayor Josh Levy

CONSENT AGENDA

Approval of the Consent Agenda

ACTION: A motion was made by Vice Mayor Callari, seconded by Commissioner Sherwood, to adopt the Consent Agenda. The motion passed unanimously. (7-0)

6. [R-2019-013](#) A Resolution Of The City Commission Of The City Of Hollywood, Florida, Approving And Authorizing The Appropriate City Officials To Execute Amendment No. 1 To The Memorandum Of Understanding For Governmental Access To The Driver And Vehicle Information Database System With The Florida Department Of Highway Safety And Motor Vehicles.

ACTION: This Resolution was moved by Vice Mayor Callari, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously. (7-0)

9. [R-2019-016](#) A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Issue A Purchase Order To N. Harris Computer Corporation For The Renewal Of Annual Maintenance And Support Of The GEMS/FMS Application Software In An Amount Not To Exceed \$94,786.98.

ACTION: This Resolution was moved by Vice Mayor Callari, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously. (7-0)

10. [R-2019-017](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Issue A Purchase Order With Safeware, Inc. For The Purchase Of An Automatic License Plate Recognition System And Associated Equipment In An Amount Not To Exceed \$53,306.85.

ACTION: This Resolution was moved by Vice Mayor Callari, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously. (7-0)

11. [R-2019-018](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute The Authorization To Proceed For Work Order Number CTA 19-01 With Craven Thompson And Associates, Inc. To Provide Professional Engineering Services For The 441 Corridor/Playland Estates Septic-To-Sewer Conversion, In An Amount Not To Exceed \$762,236.36 (Project Number 18-7090).

ACTION: This Resolution was moved by Vice Mayor Callari, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously. (7-0)

12. [R-2019-019](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute An Authorization To Proceed With Hazen And Sawyer, P.A. To Provide Professional Engineering Services For The North Central Septic To Sewer Conversion Phase II, In An Amount Not To Exceed \$638,836.00. (Project Number 18-7094/Work Order No. H & S 19-01)

ACTION: This Resolution was moved by Vice Mayor Callari, which was seconded by Commissioner Sherwood, and adopted on the Consent Agenda. The motion passed unanimously. (7-0)

13. [P-2019-05](#)

A Proclamation In Recognition Of Black History Month, February 2019.

Commissioner Shuham read the proclamation in recognition of Black History Month, February 2019.

Dr. Mary Mites-Campbell, African American Advisory Council, accepted the proclamation and thanked the Commission for the recognition.

Daphne Gilbert, AT&T, provided additional information on the poetry contest.

14. [PO-2019-01](#)

An Ordinance Of The City Of Hollywood, Florida, Amending Section 33.025 Of The Code Of Ordinances, "Employees' Retirement Fund", Providing Effective Dates For Certain Provisions; Providing For Required Updates Related To Credited Service; Providing For A Definition Of Net Market Rate Of Return For Drop Participants; Providing For Required Updates Related To Direct Rollovers; Providing For Maximum Pension Limitations; Providing For Required Minimum Distributions; Providing For The Preclusion Of Prohibited Transactions; Providing For An Expression Of Intent That The Plan Remain Qualified Under The Internal Revenue Code; Providing For Reemployment After Retirement; Providing For Codification, Severability And Conflict.

Douglas Gonzales, City Attorney, requested a continuance to the March 20, 2019 Regular Commission Meeting.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Biederman, to continue the Ordinance to the March 20, 2019 Regular Commission Meeting. On a voice vote the motion passed unanimously. (7-0)

Enactment No: O-2019-06

5. [R-2019-012](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Authorizing The Appropriate City Officials To Execute A Series Of Consultant's Authorizations To Proceed With Bermello Ajamil & Partners, Inc. To Provide Landscape And Irrigation Design Services For The Hollywood Boulevard Complete Streets Project In An Amount Not To Exceed \$78,390.00.

Discussion ensued among members of the Commission.

ACTION: Motion was made by Commissioner Blattner, which was seconded by Commissioner Hernandez, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

7. [R-2019-014](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Amending Resolution No. R-2010-171 In Order To Establish A New Parking Permit And Fee In The Downtown Hollywood Boulevard Parking Lot Located At 2014 Hollywood Boulevard And Establishing The Hours For Parking Within Said Parking Lot.

Discussion ensued among members of the Commission.

ACTION: The City Manager withdrew the resolution from consideration.

8. [R-2019-015](#)

A Resolution Of The City Commission Of The City Of Hollywood, Florida, Amending Resolution No. R-2017-217 To Allow Fifteen Minute Metered Parking In The Downtown Area And Establishing The Rate For The Metered Parking.

Discussion ensued among members of the Commission.

Dr. Wazir Ishmael, City Manager, responded to questions raised by the Commission.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Vice Mayor Callari, to adopt the Resolution. On a voice vote the motion passed unanimously. (7-0)

17. [PO-2019-04](#)

An Ordinance Of The City Of Hollywood, Florida, Amending The Subchapter Of Chapter 33 Of The Code Of Ordinances Titled "Police Officer's Retirement System"; Incorporating Various Changes To The Retirement System Contained In The Collective Bargaining Agreement Between The Broward County PBA And The City Of Hollywood, Including Changes Relating To Membership, Eligibility, Normal Retirement Benefit, And The Resolution Of Issues Related To The City's Reduction Of Pension Benefits In 2011; Further Amending Chapter 33 By Removing Outdated And Obsolete Provisions.

George Keller, Assistant City Manager for Public Safety, explained the intent of the ordinance.

The following individuals expressed personal opinions/concerns:

1. Robert Klausner, Police Pension Board Attorney
2. Jeff Marano, Florida PBA

Discussion ensued among members of the Commission.

Douglas Gonzales, City Attorney, provided additional information.

The City Clerk read the ordinance title on first reading.

ACTION: Motion was made by Vice Mayor Callari, which was seconded by Commissioner Biederman, to adopt on first reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Shuham
Commissioner Hernandez
Vice Mayor Callari
Commissioner Blattner
Commissioner Biederman
Commissioner Sherwood
Mayor Levy

Enactment No: O-2019-02

15. [PO-2019-02](#)

An Ordinance Of The City Of Hollywood, Florida, Amending Article 4, Section 4.1c. Of The Zoning And Land Development Regulations Entitled "Single Family Districts" To Revise The Front Setback Requirements For Lakefront Properties Located Within The Lakes Area Historic Multiple Resource Listing District. (18-T-54)

The Mayor announced the ordinance was advertised in conformance with Florida Statutes and City Codes. The public hearing was opened; there being no one present who wished to speak, the public hearing was declared closed.

The City Clerk read the ordinance title on first reading.

ACTION: Motion was made by Commissioner Hernandez, which was seconded by Commissioner Sherwood, to adopt on first reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Shuham
Commissioner Hernandez
Vice Mayor Callari
Commissioner Blattner
Commissioner Biederman
Commissioner Sherwood
Mayor Levy

Enactment No: O-2019-04

16. [PO-2019-03](#)

An Ordinance Of The City Of Hollywood, Florida, Amending Article 7 Of The Zoning And Land Development Regulations Entitled "Off Street Parking And Loading" By Amending Section 7.1., "General Provisions", To Revise The Regulations Relating To Curbing, Tandem Parking, And Parking Lifts; Providing For A Severability Clause And A Repealer Provision. (18-T-52)

Leslie Del Monte, Planning Manager, explained the intent of the ordinance.

Discussion ensued among members of the Commission.

Dr. Wazir Ishmael, City Manager, provided additional information.

Commissioner Biederman left the meeting at 2:55 PM and returned at 2:59 PM.

Vice Mayor Callari left the meeting at 2:59 PM and returned at 3:00 PM.

Extensive discussion ensued among staff and members of the Commission.

The Mayor announced the ordinance was advertised in conformance with Florida Statutes and City Codes. The public hearing was opened; there being no one present who wished to speak, the public hearing was declared closed.

The City Clerk read the ordinance title on first reading.

ACTION: Motion was made by Commissioner Blattner, which was seconded by Commissioner Sherwood, to adopt on first reading the Ordinance. The motion on roll call vote carried:

Aye: Commissioner Shuham
Vice Mayor Callari
Commissioner Blattner
Commissioner Biederman
Commissioner Sherwood
Mayor Levy
Nay: Commissioner Hernandez

Enactment No: O-2019-05

18. Commissioner Biederman, District 5

Mission Possible Boot Camp

Commissioner Biederman thanked staff for the great job they are doing on the Mission Possible Boot Camp program, the next event is on February 23, 2019 from 9:30 AM to 12:30 PM at Boulevard Heights Community Center.

19. Commissioner Sherwood, District 6

Hollywood Gardens West Civic Association

Commissioner Sherwood stated that Idelma Quintana is trying to re-establish Hollywood Gardens West Civic Association as they have not held a meeting in the last six months. They will be meeting on Monday night.

VITA Program

Commissioner Sherwood announced Hispanic Unity has started their VITA program, free tax preparers for low income individuals.

City Improvements Needed

Commissioner Sherwood explained that at recent community meetings residents are asking for something to be done about speeding, potholes,

landscaping and connecting to City sewers, and wants to start working on these projects. She wants to have staff look into having one contractor connect all the sewer lines for everyone, as she thinks they can utilize economies of scale.

Water Heater Permit

Commissioner Sherwood stated a resident complained about the cost of a water heater permit in Hillcrest. The permit was \$190.00 but the water heater cost only \$250.00, the permit fee is almost as much as the water heater. Commissioner Sherwood requested what is the cost of the permit fee. Dean Decker, Building Official, responded it depends on the type of water heater being installed.

African American Advisory Council

Commissioner Sherwood explained the African American Advisory Council will be holding the Juneteenth Celebration this year, but they need help to continue the celebration. Commissioner Sherwood encourage City Commissioners to get involved on their host committee in order to get donations for the event, as the gala will be in March. Commissioner Sherwood encouraged donations.

20. Commissioner Shuham, District 1

Communications Tower

Commissioner Shuham thanked all the staff who are working with Broward County to relocate the communications tower to the CIRC building. She especially recognized Andria Wingett, Assistant Director of Development Services; Dean Decker, Building Official; and Shiv Newaldass, Director of Development Services, for all their help.

Paddleboard

Commissioner Shuham thanked Rodolfo Jurado, Deputy Fire Chief, and Bruce Wilkie, Marine Safety Chief, for all their work regarding the paddleboard regulations.

Electric Scooters

Commissioner Shuham explained there are two House Bills and a Senate Bill pertaining to home rule and regulating of electric scooters. She asked for support to have a moratorium on scooters. Vice Mayor Callari, Commissioner Blattner, Commissioner Sherwood and Mayor Levy supported the request.

Extensive discussion ensued on the requirements for a moratorium, and how to regulate electric scooters, the request was changed to have staff

bring back an ordinance on regulating electric scooters.

21. Commissioner Hernandez, District 2

VITA Program

Commissioner Hernandez explained he is also a volunteer for the VITA program and he urged anyone needing tax help to take advantage of the program.

Downtown Circulator

Commissioner Hernandez requested a circulator update, as there was \$1.1 million in parking fees generated in the Downtown for ten months for the Parking Revenue Fund. The City should have funding available for the circulator.

Pension Obligations

Commissioner Hernandez questioned if the pension obligations for those individuals in the Parking Fund, if they are paid from the Parking Fund or the General Fund.

George Keller, Assistant City Manager for Public Safety, responded all pension costs for employees in the enterprise funds will be spread amongst the enterprise funds, not the General Fund.

Accidents

Commissioner Hernandez stated at S 29th Avenue and Plunkett Street there have been two accidents recently, as it is used as a cut thru for traffic. Commissioner Hernandez asked for extra police patrols in the area.

441 Corridor

Commissioner Hernandez stated the west side of the 441 corridor is bad, and wants Code Compliance to look into the issue.

Thank You

Commissioner Hernandez also thanked Andria Wingett, Assistant Director of Development Services, for all her work on the communications tower.

Paddleboard

Commissioner Hernandez stated there could be a few individuals who want to paddleboard, but it is foreseeable that someone would open a paddle board rental place on the boardwalk, then there would be novices paddle boarding, which could be a safety issue.

Scooters

Commissioner Hernandez stated scooters are becoming a nuisance, and the City should do something.

Marjory Stoneman Douglas High School

Commissioner Hernandez stated the City of Parkland and others have reached out to us regarding the City having a moment of silence for the Marjory Stoneman Douglas High School victims. Mayor Levy stated the City Manager will address this issue.

Canada Fest

Commissioner Hernandez spoke about Canada Fest needing a liability insurance waiver from the City.

Dr. Wazir Ishmael, City Manager, stated staff will work with them, but we need them to sign a couple of documents. Staff will need to look at the contract because it is the same issue every year.

22. Vice Mayor Callari, District 3

Traffic Issues

Vice Mayor Callari stated at N 37th Avenue and Thomas Street there are complaints about the traffic, and requested a 4 way stop sign be installed. Vice Mayor Callari stated there are also traffic issues at N 46th Avenue and Thomas Street, as there has been a death, and the area needs to be looked into to make it safer. Mayor Levy and Commissioner Hernandez supported the request.

Shutting Off Water

Vice Mayor Callari stated on Johnson Street between 441 and N 56th Avenue, the water is being shut off due to the lack of communication, which is causing issues for the businesses.

Be Mine Dog Show

Vice Mayor Callari announce the Be Mine Dog Show will be this Saturday at Stan Goldman Park from 9:00 AM to 1:00 PM.

LED Lights

Vice Mayor Callari stated the LED light map shows in District 3 "As Completed", but it is not true.

CRA

Vice Mayor Callari stated she had previously requested a consultant review of the CRA and where we are going. Vice Mayor Callari stated there are two things she wants to request to prevent human errors from

occurring on issues. She wants the CRA to follow the same purchasing procedures as the City.

Douglas Gonzales, City Attorney, responded that there is already a policy that the CRA will use the City Procurement Code and processes.

Vice Mayor Callari wants to ensure the CRA follows the City's procurement processes in the future.

Vice Mayor Callari stated there have been many discussions regarding the CRA employees possibly losing their jobs, however the consultant group would give us answers to questions raised. Vice Mayor Callari stated she wants to have the CRA under city management, which should be addressed in the report.

Don Gallagher Passing

Vice Mayor Callari stated family friend, Don Gallagher, passed away this weekend. He was a business owner in the City, and his daughter will continue to run the business.

23. Commissioner Blattner, District 4

Grant Award

Commissioner Blattner congratulated the City and thanked Luis Lopez, City Engineer, on the City being awarded a grant for a sea slip project from the Metropolitan Planning Organization (MPO) for bike lanes and sidewalks in the amount of \$420,000.00 for engineering/planning and another \$1.6 million for construction.

Surtax Funds

Commissioner Blattner stated he was speaking as a representative for the Metropolitan Planning Organization (MPO) regarding the recent passing of the surtax. Commissioner Blattner explained the money will not be coming in so fast, which is a serious problem. The surtax legislation requires that the MPO review the projects submitted to determine the stage they are at. The MPO does not have enough staff for this, and Broward County does not want to help with staff to review projects. Many cities are raising the issue of their share and when they will receive it. There has to be a method of distributing the funds to the cities.

24. Mayor Levy

Surtax Funds

Mayor Levy stated last Monday he attended a Mayors Council where they

discussed surtax money between the cities and Broward County how the distribution would occur. An email was received from Mayor Steimer from the City of Weston regarding a resolution supporting the distribution of the surtax funds based upon a population formula.

Canada Fest

Mayor Levy announced Canada Fest will be downtown this weekend.

Bicycle Issues

Mayor Levy stated he had a bicycle ride with Police staff on Monday in which he learned a lot about riding on the streets. Bicycle riders experienced the clash between cars and bicycles on the road. Mayor Levy stated he previously received support for the creation of a Bicycle Green Route System in the City. This route system will include information thru a brochure, app and pavement markings. He is looking forward to working on this with staff and wants a committee of residents included.

Green Team Advisory Committee

Mayor Levy suggested the Green Team Advisory Committee help inspire businesses, by putting together criteria on how they can put together green initiatives and receive a Hollywood Green Business Certification. Mayor Levy asked for support to task the Green Team Advisory Committee to establish this program. Commissioner Sherwood and Commissioner Blattner supported the request.

Septic to Sewer Conversion

Mayor Levy stated in Lawn Acres the septic to sewer is a big conversation, with construction starting soon, and expressed to staff the importance of establishing a payment plan, and if the City could have the contractor do the installation and spread out the finance payment for residents.

Chris Hixon Run

Mayor Levy announced the Chris Hixon 5k run will be February 16, 2019, and encouraged everyone to attend.

Public Utilities Work

Mayor Levy questioned when would be the completion date for the work on Johnson Street from N 56th Avenue to 441. Francois Domond, Interim Director of Public Utilities, stated the target date is February 25th for completion.

25. City Attorney

City Attorney's Office Annual Report

Douglas Gonzales, City Attorney, stated last year he resurrected the City Attorney's Office Annual Report, and he has completed this year's, which has been distributed to the City Commission.

26. City Manager

Police

Dr. Wazir Ishmael, City Manager, thanked the City Commission for passing item 17 today, Police Pension, which has been a contentious item in the making for some time, this will continue to make the City safe and viable. Dr. Ishmael, City Manager, shared crime statistics for 2017 to 2018 which have been reduced.

New Staff

Dr. Wazir Ishmael, City Manager, introduced the new Budget Division Director, Lautette Jean, and the new Economic Development Manager, Herb Conde-Panlato.

Marjory Stoneman Douglas High School

Dr. Wazir Ishmael, City Manager, stated there have been requests for the City to recognize the Marjory Stoneman Douglas High School tragic event and what the City would do for recognition. The City will have a moment of silence in recognition of this tragic event. Staff will provide the City Commission with information when everything is finalized. There will be a moment of silence and flags will be at half-staff, with the honor guard lowering the flags.

Transportation Surtax

Dr. Wazir Ishmael, City Manager, stated there will be a resolution with regards to the transportation surtax on the next agenda.

Communication Tower

Dr. Wazir Ishmael, City Manager, thanked Andria Wingett, Assistant Director of Development Services, for her work on the communication tower, and invited her to provide an update on the progress of the tower location.

Andria Wingett, Assistant Director of Development Services, provided an update on the various meetings and communications between all parties.

Dr. Wazir Ishmael, City Manager, also provided an update on the Chapter 164 meeting with Broward County.

Department of Development Services

Dr. Wazir Ishmael, City Manager, stated it has taken months for this presentation from Shiv Newaldess, Director of Development Services, to talk about the Department of Development Services.

Shiv Newaldess, Director of Development Services, provided an overview of the Department of Development Services.

Vice Mayor Callari left the meeting at 4:17 PM and returned at 4:19 PM.

Commissioner Sherwood left the meeting at 4:20 PM.

27. The meeting adjourned at 4:47 PM.

Patricia A. Cerny, MMC
City Clerk
Hollywood, Florida

Approved on:
